



GOVERNANCE

FEDERALISM

MODULE - 19

FEDERALISM INTRODUCTION

1 Federalism is a harmonious system of government, in which the powers are distributed between a union government at the national level and several provincial governments at the sub-national level.

2 It requires a minimum of two levels of government to create a federal state:

i The Union government, which takes the responsibility for subjects of law that have a common national interest.

ii The provincial or state governments that look after subjects of regional or provincial interest.



FEDERALISM INTRODUCTION

- 3 In a true spirit, these governments act independent of each other, when it comes to federalism.
- 4 This is guaranteed by the proportionate division of subjects and their ratification through a written constitution.
- 5 It is done so as to ensure a constitutional sharing of sovereignty that prevents the accumulation of unbridled power with the Union Government or vice-versa.

- 6 Notable examples of federal countries include the United States of America, Canada, Australia, Germany, Switzerland and India.



TYPES OF FEDERALISM

a CLASSIFICATION BASED ON NATURE OF FEDERALISM

1 The concept of federalism has evolved since its inception and has developed into different models.

2 These models can be decoded as the following types:

i Dual/Layer-cake federalism

ii Cooperative/Marble cake federalism

iii Competitive federalism

iv Permissive federalism

v The "New" federalism



TYPES OF FEDERALISM

a CLASSIFICATION BASED ON NATURE OF FEDERALISM

i DUAL/LAYER-CAKE FEDERALISM

1 In this model, the Union government takes control on crucial subjects such as foreign policy, defence, communication, etc., leaving the rest to the provincial units.

2 The domains of both governments are usually exclusive in nature.



TYPES OF FEDERALISM

a CLASSIFICATION BASED ON NATURE OF FEDERALISM

ii COOPERATIVE FEDERALISM

1 This form of federalism insists on the two levels working together as a team.

2 The inter-governmental relations are mostly cooperative in nature, while the autonomy of the states in their spheres is not infringed by the Union government.

3 There is a confluence of powers, resources, and programs between and among the Union, provincial and local governments.

4 There are, however, possibilities of influencing the policies and decision making of the state governments.



TYPES OF FEDERALISM

a CLASSIFICATION BASED ON NATURE OF FEDERALISM

ii COOPERATIVE FEDERALISM

5 The process of cooperation is ensured through several means.

6 Usually it is done by creating vision documents in planning, dialogues in several centre-state fora, etc.

7 For instance, the 15-year vision document being prepared by the NITI Aayog in consultation with the states is a notable example.

8 Similarly, the Goods and Services Tax council includes representatives of both the Government of India and the state governments.



NITI Aayog



TYPES OF FEDERALISM

a CLASSIFICATION BASED ON NATURE OF FEDERALISM

iii COMPETITIVE FEDERALISM

1 It is a type of federalism in which the Union government, states and local bodies compete with each other.

2 This competitive spirit is held in order to provide a better delivery of services and inclusive growth to their citizens.

3 The competition is visible in spheres such as investment opportunities, social welfare schemes and infrastructure development.

4 It is to be noted that competition is not opposite of the cooperation.



WHY INDIA OPTED FOR FEDERALISM?

DIVERSE AND LARGE POPULATION

With a large population spread across a large pluralistic framework in terms of ethnic, linguistic, religious and other diversities, it was necessary to implement a system of polity that would accommodate these pluralities. This was to be done without compromising on building a unified nation.



WHY INDIA OPTED FOR FEDERALISM?

SEVERE ECONOMIC DISPARITY

1 The perils of colonial rule made India as a land of severe economic disparities and chronic under-development.

2 As the immediate goal for the newly born nation was to turn around the economic conditions, it was necessary to bring in an administrative system that would combine regional management and centralized supervision.

3 It was thus decided that a federal polity with an empowered union government will best fit these requirements to achieve the goal.



WHY INDIA OPTED FOR FEDERALISM?

BRITISH LEGACY

The British though did not strictly follow the federal system of governance, they did set up federal institutions, whereby provinces had a Governor to administer and rule.



GANDHI'S VISION

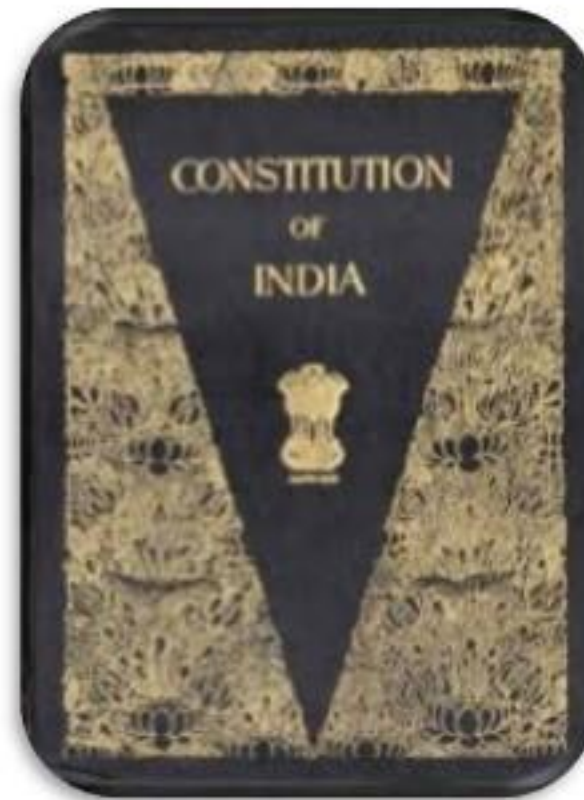
- The Congress Party under Gandhi during the independence struggle had opted to set up various committees in each villages.
- Gandhi's true vision was to make village republic, and devolving power to the federal government was the initial step in doing that.



FEATURES OF INDIAN FEDERALISM

1 DUAL GOVERNMENT

- 1 The constitution has distributed powers between the Union and the States.
- 2 Through this distribution, it seeks to accommodate the diversity of India.
- 3 By providing certain powers to the state governments, the constitution allows the states to take decision with flexibility and according to local needs.



FEATURES OF INDIAN FEDERALISM

2 AUTHORITY OF THE COURTS

- 1 Legal supremacy of the constitution is an essential feature in the federal system.
- 2 It helps in maintaining the division of powers between the union and centre.
- 3 Courts have the final power to interpret the constitution and nullify actions on the part of the federal and state governments or their different units, which violate the provisions of the constitution.



FEATURES OF INDIAN FEDERALISM

3 MODE OF FORMATION

Unlike the United States, which was formed as a result of coming together of a group of states, Indian federalism was born out of the need for administrative convenience.



FEATURES OF INDIAN FEDERALISM

4 POSITION OF THE STATES IN THE FEDERATION

- 1 In the United States, since the states had existed much before the formation of federation, they held their own sovereignty vis-a-vis the federal government.
- 2 Therefore, their constitution had several safeguards for the protection of state's sovereignty.
- 3 Whereas in India, there was no such history of states holding a higher sovereignty. Thus, our states do not enjoy a higher authority in comparison to the Union Government.



CRITICISM OF INDIAN FEDERALISM

Though the founding fathers of the Indian Constitution have done their best to imbibe a federal character into our polity, there are a number of criticisms against it.

1 NOT A TRULY RIGID CONSTITUTION

1 The amendment process to the constitution of India follows a blend of rigidity and flexibility.

2 Some of its provisions can be easily amended by the parliament and some require ratification from the states

3 While it is challenging to pass amendments that affect the federal provisions, it is not as difficult as the amendment process in the United States.

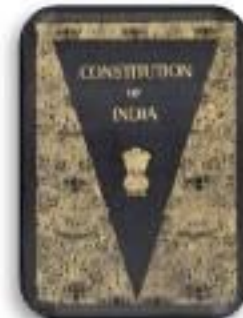


CRITICISM OF INDIAN FEDERALISM

1 NOT A TRULY RIGID CONSTITUTION

POINT 1. POWERFUL UNION GOVERNMENT

- 1 The Union holds more power as against the states.
- 2 This can be understood by the number and importance of subjects under the Union List under Schedule 7 of the constitution.
- 3 Even regarding the concurrent list, the constitution empowers the Parliament to override any law made by the State legislature in case of a conflict with a Union law on the same subject.
- 4 Additionally, all residual powers are also vested with the parliament
- 5 Besides this, it empowers the parliament to legislate in certain cases to legislate on subjects in the State list.



CRITICISM OF INDIAN FEDERALISM

2 UNEQUAL REPRESENTATION OF STATES IN THE UPPER HOUSE

1 In bicameral legislatures of federal countries it is a basic feature to have equal representation for states in the upper house.

2 India has deviated from this principle and has opted for proportional representation based on the population of the respective states.



CRITICISM OF INDIAN FEDERALISM

3

EXECUTIVE IS A PART OF LEGISLATURE

Separation of powers is yet another essential part of a federal polity. In India though, the political executive is an integral part of the legislature.



CRITICISM OF INDIAN FEDERALISM

4 LOWER HOUSE ENJOYS GREATER POWER THAN UPPER HOUSE

- 1 The role of the upper house in a federation is quite significant as it features representatives from the states.
- 2 In the Indian parliament however, the lower house enjoys greater powers compared to the upper house.
- 3 For instance, money bills can only be introduced in a lower house; a no confidence motion against the government can only be initiated in the lower house.
- 4 Interestingly, the upper house as well enjoys the unique power such as to initiate a bill for the creation of an All-India service.
- 5 Such unequal distribution of powers among the houses of parliament is contrary to the principle of federalism.

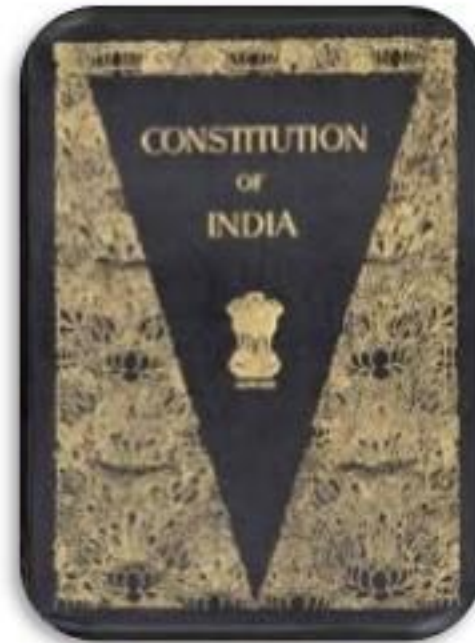


CRITICISM OF INDIAN FEDERALISM

5 EMERGENCY POWERS WITH THE UNION

1 The constitution has vested all the emergency powers with the Union government.

2 By enforcing an emergency, the Union government virtually takes complete control of the country, superseding the autonomy of the state governments



CRITICISM OF INDIAN FEDERALISM

6 INTEGRATED JUDICIARY

Though independent, the judiciary is integrated. This means, India does not have a separate judiciary at the union and at the state level.



7 SINGLE CITIZENSHIP

Indian citizens hold only one citizenship that is issued by the Union government whereas in United States of America, concept of dual citizenship exists.



CRITICISM OF INDIAN FEDERALISM

8 APPOINTMENT PROCESS OF GOVERNOR

The power of appointing a governor lies with the President, who executes this power based on the advice of the council ministers. As a result, the governor acts as an agent of the Union Government.



CRITICISM OF INDIAN FEDERALISM

9 ALL INDIA SERVICES

1 The Union government through the All India Services such as the Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFS), veers into the governance of states and controls the executive functions.

2 Though the immediate authority of these services lie with the state, the ultimate powers lie with the Government of India.

3 These services provide efficiency and uniformity in administration throughout the country.



CRITICISM OF INDIAN FEDERALISM

10 DESTRUCTIBLE STATES

- A state's name, territory, or its very existence can be changed by the Parliament by passing a law to that effect.
- All of this can be done following the procedure of an ordinary bill.



CRITICISM OF INDIAN FEDERALISM

11 VETO OVER STATES' BILLS

- 1 The Governor of a state has the power to reserve certain bills for the President's consideration.
- 2 The President on the other hand is provided with absolute veto on these bills.
- 3 At times, he also holds the power to reject bills, when they come after reconsideration and are still found wanting.
- 4 As the President follows the advice of the council of ministers in this respect, this power can be misused to keep the state legislatures under the hold of the Union Government.



CRITICISM OF INDIAN FEDERALISM

12 INTEGRATED ELECTION MACHINERY

- 1 Elections in India, at both the centre and states are conducted by the Election Commission of India.
- 2 Though the body is independent of political intervention or influence, the Chairman and the members of the commission are appointed by the President.



CRITICISM OF INDIAN FEDERALISM

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INTEGRATED AUDITING

Similar to the conduct of elections in India, auditing of accounts of the states and the union are done by the Comptroller and Auditor General of India. The holder of this office is also appointed by the President.



14

REMOVAL OF KEY FUNCTIONARIES

- The state government is hardly empowered to remove government functionaries, even at the state level.
- This includes judges of the high court, state election commissioners, etc.



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